EX TEMPORE

NATHAN MVERE
versus
ROCKDRILL TRADING (PRIVATE LIMITED)

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 13 and 17 February 2026.

Exception

I. Mataka for the Plaintiff.
B. Mwatura, for the Defendant.

DEME J: The Plaintiff approached this court with a claim for accident damages. More particularly, the Plaintiff's claim is for:

A. Payment of accident damages in the sum of US$83,500.00 suffered by the Plaintiff as a result of alleged negligence of the driver of the Defendant.

B. Interest at the prescribed rate from the date of judgment up to the date of payment in full.

C. Costs of suit.

The Plaintiff alleged that on 26 March 2022, Wellington Chihwa, the Defendant's driver of the vehicle, namely Powerstar haulage truck registration number AFJ2204, negligently caused the accident along Machek Virginia Road, which saw the Plaintiff's vehicle, namely Nissan Sunny registration ADN8638, being damaged beyond repair. It was alleged that the driver veered off the road and hit the Plaintiff's vehicle, which was parked on the left side of the road. The Plaintiff alleged that the driver was within the scope of the Defendant's employment.

The Plaintiff also claimed that he lost the sum of US$6 500, which was in the vehicle, as a result of the accident. The Plaintiff averred that as a result of the accident, he suffered permanent injuries and permanent disability. He further affirmed that he was rendered incapable of working as a result of the accident.

The Defendant excepted to summons and declaration. In its exception, the Defendant averred that the Plaintiff did not plead that the driver was within the course and scope of employment at the material time. According to the Defendant, the Plaintiff only pleaded the scope of employment and not both course and scope.

In its second exception, the Defendant affirmed that the Plaintiff failed to join the driver to the present proceedings. According to the Defendant, whenever vicarious liability is pleaded, the employee concerned must be joined to the proceedings.

In the third exception, the Defendant argued that there is no causal link between the accident and the alleged loss of money which was pleaded. In its last exception, the Defendant averred that:

> "Even if causal link was pleaded, there is still no causal link between accident and the loss of money physically in the car when the accident happens as any independent act leading to loss would amount to *novus actus interveniens*."

Mr. *Mwatura* abandoned the fourth exception as he was making oral submissions. Mr. *Mwatura* prayed for the dismissal of the Plaintiff's claim based on the Plaintiff's failure to plead both "course and scope". According to Mr. Mwatura, "course and scope" are relevant for purposes of vicarious liability.

In replication to the exception, the Plaintiff averred that once "scope of employment" is pleaded, this is sufficient. Mr. *Mataka* argued that scope and course are the same in terms of meaning. However, no dictionary meaning was referred to. Mr. *Mwatura* insisted that the words "course and scope" are different and ought to be pleaded at the same time.

Responding to the non-citation of the driver, the Plaintiff insisted that the non-joinder does not make a case fatally defective. In his response to the third exception, Mr. *Mataka* contended that the details of how cash was lost as a result of the accident are not necessary for purposes of pleading, as such details constitute evidence.

On the day of the hearing, Mr. *Mataka* raised a point *in limine* to the effect that the Defendant failed to comply with Rule 42(9) by failing to set down the matter within one month. Mr. *Mataka* drew the court's attention to the letters of Registrar dated 15 July 2025 and 8 September 2025 addressed to the Defendant's legal practitioners advising them to set down the exception. Submitting on behalf of the Plaintiff, Mr. *Mataka* argued that the exception ought to have been set down within one month after the filing of replication and heads of argument by the

Plaintiff. On this basis, Mr. *Mataka* motivated this court to remove the matter from the roll so that the exception may be dealt with as a point *in limine* at trial.

Responding to the point *in limine*, Mr. *Mwatura* maintained that the delay in setting down the matter was caused by the Plaintiff, who sought condonation for the replication to the exception which was improperly before the court. He contended that the order for condonation of the replication was only filed in the present proceedings on 11 September 2025. On this basis, he argued that there was no fault on the part of the Defendant. He accordingly prayed for the dismissal of the point *in limine*.

It is apparent that, on 30 July 2025, this court granted condonation for the late filing of the replication in case number HCH 3207/25 upon application filed by the Plaintiff. In granting condonation for the late filing of the replication, this court ruled that:

> "1. The application for condonation for non-compliance with Rule 42(9) of the High Court Rules, 2021 and extension of time within which to file a replication to the defendant's exception under HCH1014/25 is hereby granted.
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> 2. The replication that was filed on the 24th of June 2025 hereby (sic) be deemed to have been properly filed on time and admitted to the record.
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> 3. There is no order for costs."

The exception was filed on 5 June 2025. The Plaintiff was supposed to replicate to the exception within ten days. Reference is made to Rule 42(9). Which provides that:

> " Where the other party is represented by a legal practitioner, he or she within ten days of receipt of the exception, special plea or application to strike out and the heads of argument accompanying it, file his or her replication and heads of argument and whereupon, the registrar shall give such party a set down date within a month from the date of filing."

The Plaintiff only managed to file the replication by 24 June 2025. The Plaintiff was out of time by this time. Hence, he sought condonation of this court which was granted on 30 July 2025. This order was made part of the present proceedings on 11 September 2025. The Registrar's first letter dated 15 July 2025 calling upon the Defendant to set down the exception was authored before the replication was regularised by this court. The setting down of the matter contemplated in Rule 42(9) refers to the setting down of the matter on the opposed roll. By 15 July 2025, the exception was unopposed. There was no replication on the record. What purported to be a replication was improperly before the court. This was a nullity by 15 July 2025. It was

going to be a futile exercise if the Defendant was going to set down the matter on the opposed roll where the matter was unopposed.

Mr. *Mataka* argued that the Plaintiff filed heads of argument. Hence, the matter was opposed on this basis. It is apparent in our jurisdiction that one's failure to file a replication will result in a party being barred. Reference is made to Rule 40(9) which provides that:

> "(9) Any party who fails to file and deliver a replication or subsequent pleading within the time stated in this rule shall be as a result of this fact barred."

In the case of *Nan Brooker* v *Mudhanda and Anor*[1], the Supreme Court emphasised the need to file a replication in a special plea. The Supreme Court remarked as follows:

> "After being served with the special plea of prescription the respondent should have replicated. The purpose of a replication is to inform the court and the defendant of the plaintiff's rebuttal to the special plea. The failure by the respondent to file a replication to the special plea means that there are no disputes for determination on the special plea. In the absence of such replication there would be no issue for determination by the court *a quo."*

It is apparent that Rule 42(9) covers replication for special plea and exception. Hence, the Supreme Court's decision *of Nan Brooker supra* is quite pertinent in this connection. Without replication, there is no need to have the matter set down on the opposed roll. Mr. *Mataka*'s submission that the matter was opposed due to the heads of argument is baseless. Heads of argument cannot be regarded as a substitute for the replication. Similarly, the Respondent in the application cannot claim that the matter is opposed where there are no valid opposing papers on the record, even though the Respondent's heads of argument have been filed.

Mr. *Mwatura* argued that they were only made aware of the judgment in case number HCH3207/25 on 11 September 2025 when it was filed in the present proceedings. This was not disputed by Mr. *Mataka* in his response to the submissions by Mr. *Mwatura.* On this basis, I take it that he admitted this fact. In the circumstances, the point *in limine* raised by the Plaintiff is unmerited. It is hereby dismissed.

Motivating the first exception, Mr. *Mwatura* referred the court to textual authorities and case law. Reference was made to Amler's *Precedent of Pleadings* and the case of *Brightland*

[1] SC5/18.

Farming (Pvt) Ltd v *Redan Petroleum*[2] in order to motivate the need to plead "course and scope". Mr. *Mataka* argued that "course and scope" mean the same thing and hence can be used interchangeably. I disagree with this approach. The dictionary meanings of the words "course and scope" are not identical. The Oxford dictionary meaning of course includes:

> "1. The route or direction followed by a ship, aircraft, road or river.
> 2. A series of lectures or lessons in a particular subject, leading to an examination or qualification."

The Oxford dictionary meaning of the "scope" includes:

> "1. The extent of the area or subject matter that something deals with or to which it is relevant.
> 2. The opportunity or possibility to do or deal with something."

According to the Oxford dictionary, the words "course and scope" are not synonyms. Assuming that the two words are similar in the absence of evidence is baseless. In my view, the word "course" suggests that the employee was under the direction of the employer when he or she committed the alleged delict. Where the employee was not under the direction of his employer at the material time, the employer may not be held liable for the delicts committed by such employee who was on a frolic of his or her own. The word "scope" suggests that the employee concerned was operating within the defined parameters of his or her job description. Thus, if the employee was operating outside the defined parameters of the job description, the employer can raise this as a defence. In the circumstances, I am of the view that the Plaintiff ought to have pleaded both "course and scope" if he wanted the employer of the driver to be vicariously liable.

Mr. *Mwatura* submitted that the claim of the Plaintiff ought to be dismissed for his failure to plead both "course and scope". In my view, this omission is not something which cannot be cured. A dismissal suggests that the court has examined the merits of the claim. Dismissal will put the Plaintiff out of court. He will be prevented from approaching the court with the corrected

[2] HH884/22.

summons and declaration. My view is fortified by the case of *Nhari* v *Mugabe and Ors*[3], where, in paragraph 45, the Supreme Court opined as follows:

> "[45] I am inclined to agree with the appellant that the order dismissing the entire claim was, in the circumstances, improper. The court had found that it had no jurisdiction to entertain the claims because such claims lay in the province of labour. Having so determined, there was therefore nothing that remained before the court. There was nothing further to dismiss. In *Edward Tawanda Madza & Others* v *(1) The Reformed Church in Zimbabwe Daisyfield Trust (2) The Reformed Church of Zimbabwe (3) Naison Tirivavi (4) The Dutch Reformed Church* SC 71/14 this Court remarked as follows:-
> "It is a contradiction in terms to dismiss a matter on the twin bases that it not urgent and that the applicant has no *locus standi* for the latter basis indicates that a decision on the merits of the application has been made in which event the applicant is barred from placing the matter on the ordinary roll for determination. The effect of the dismissal on the latter basis is that the applicant is put out of court and is deprived of his right to have the matter properly ventilated in a court application or trial. Where, however, the matter is struck off the roll for lack of urgency, the applicant, if so advised, may place the matter on the ordinary roll for hearing." (at pp 8 – 9 of the judgment)"

Where the defect goes to the root of the cause of action, the court can only strike the claim from the roll, giving the Plaintiff a further opportunity of approaching the court with a remedied summons and declaration. In the case of *China Africa Cotton Zimbabwe (Pvt) Ltd* v *Quton Seed Company (Pvt) Ltd*, CHAREWA J held that:

> "It is trite that summons must disclose a cause of action otherwise it is so bad in law that it cannot be condoned and is thus expiable[4]. It is further trite that summons which does not disclose a cause of action is a nullity and cannot be amended.[5] The only cure for such summons is to withdraw it and start afresh.
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> In addition, the courts have also consistently held that the object of any pleading is to state in clear and concise terms the facts upon which a party relies in order for each party to come to trial well prepared to meet the case it must answer and to enable the court to adjudicate thereon. In that regard, the courts invariably address the questions which I may generally express as follows:
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> 1. Is a litigant sufficiently aware of the details of the claim?
> 2. Is the legal basis of such claim adequately articulated?
> 3. Is the relief clear?

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[3] SC161/20.

[4] *Matanhire v BP & Shell Marketing Services (Pvt) Ltd* 2004 (2) ZLR 147 (S)

[5] See also *Business Equipment Corp v Baines Imaging Group* 2002 (2) ZLR 354 (S).

> In the result, where the summons does not contain sufficient facts on the details of the claim, or where the relief sought is not sufficiently clear, the courts generally allow amendments, as this does not go to the root of the matter. Where however, the legal basis of the claim is completely absent, an exception is generally upheld as without a *causa*, a claim is dead in the water[6]. Exceptionally, where a reading of the summons together with the declaration discloses the *causa* sufficiently, particularly where the summons specifically states that the claim is more fully amplified in the declaration, the courts have taken the robust approach to allow amendment of the cause of action."

In *casu*, the failure to plead both "course and scope" is a remediable defect. This does not go to the root of the cause of action. The Plaintiff pleaded "scope" and omitted "course". This constitutes insufficient facts which do not go to the root of the cause of action. On this basis, the Plaintiff must be given an opportunity of amending summons and declaration if he so wishes.

On the question of non-joinder, Mr. *Mataka* admitted that there is non-joinder of the driver. He submitted that efforts were made to locate the driver without success. Hence, the claim proceeded without the citation of the driver. Mr. *Mwatura* dismissed this explanation as an attempt to give evidence over the bar. He insisted that the matter must be dismissed as a result of the non-citation of the employee. Reference was made to the case of *Masendeke* v *Kukurakurehwa Bus Service*[7]. However, he later admitted that the question of misjoinder or non-joinder must not lead to the dismissal of the matter.

It is apparent that non-citation cannot make any cause fatally defective. Reference is made to Rule 32(11) which provides that:

> *"*No cause or matter shall be defeated by reason of the misjoinder or non-joinder of any party and the court may in any cause or matter determine the issues or questions in dispute so far as they affect the rights and interests of the persons who are parties to the cause or matter."

On this basis alone, I find a dismissal undesirable. However, the exception must be upheld on the basis that the claim is incomplete without the citation of the employee. Reference is made to the case of *Masendeke* v *Kukurakurehwa Bus Service supra*.

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[6] See *Muchakata v Netherburn Mine* 1996 (1) ZLR 153(S). See also *Taruona v Zvarevadza & Ors* HH-87-12 and *Tobacco Processors (Pvt) Ltd v Bak Storage (Pvt) Ltd & Ors* HH-49-12

[7] HH101/17.

In its third exception, the Defendant insisted that it is not clear how the accident caused the alleged loss of the money. The Plaintiff insisted that there is a causal link between the accident and the loss of the money. The purpose of exception is to ensure that the opposite party is not forced to plead in the dark. Simply alleging that the accident caused loss of money is not sufficient. The Plaintiff ought to have pleaded with sufficient particularity on this aspect. In my view, stating the exact circumstances of how the money was lost in the accident must not be regarded as evidence. It enables the other party to have a clear picture of the exact nature of the Plaintiff's case.

There is a clear distinction between fact and evidence. In the pleadings, the party must plead facts. The party is not expected to plead evidence. In the case of *Jones* v *Hamilton and Haw*[8], BARRY JP, in distinguishing fact and evidence, held that:

> "Stating that a thing was done is stating a fact; giving the details of how it was done would be giving evidence of it. Sometimes it is very difficult to state a fact concisely, without, in stating it, indicating the evidence of it."

In *casu*, stating the exact circumstances of the accident leading to the loss of money ought to be pleaded. Such circumstances constitute the Plaintiff's cause of action. Without pleading such essential facts, the Plaintiff's claim lacks precision. The cause of action was widely defined in our jurisdiction. In the case of *Abrahams & Sons* v *SA Railways and Harbours*[9], the court defined the cause of action in the following way:

> "The proper meaning of the expression 'cause of action' is the entire set of facts which gives rise to an enforceable claim and includes every act which is material to be proved to entitle a plaintiff to succeed in his claim. It includes all that a plaintiff must set out in his declaration in order to disclose a cause of action."

Omitting the precise circumstances leading to the loss of money will prejudice the opposite party. Mr. *Mataka* submitted that the Plaintiff can reserve the right to explain the exact circumstances in the replication. In my view, such circumstances ought to be pleaded in the summons and declaration. After the replication, the Defendant will not be able to file any further answer to the replication. On this basis, the Defendant will be prejudiced.

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[8] 1886) 5 EDC 222 at 228

[9] 1933 CPD 626.

In the circumstances, the first, second and third exceptions are merited and ought to be upheld. The summons and declaration are vague and embarrassing to the extent highlighted in this judgment. If so minded, the Plaintiff shall take rectification measures to address the complaints raised by the Defendant and consequently upheld by the court.

On the issue of costs, costs ordinarily follow the outcome. No submission was advanced to persuade the court to have a departure from this established practice. The Plaintiff was warned in advance. He ignored the advice. On this basis, the Plaintiff must bear costs for ignoring the call. The Plaintiff ought to have taken remedial steps to arrest the situation. For this reason, the Plaintiff must bear costs on an ordinary scale. Such costs are reasonably sufficient, in my view. Accordingly, it is ordered as follows:

A. The Plaintiff's point *in limine* to the effect that the Defendant failed to set down the exception within the prescribed time lines be and is hereby dismissed.

B. The first, second and third exceptions be and are hereby upheld.

C. The Plaintiff shall bear costs of suit on an ordinary scale.

DEME J. …….....

Chambati Mataka and Makonese, Plaintiff's Legal Practitioners.
Jambo Legal Practice, Defendant's Legal Practitioners.